

The Claremont City Council held a meeting on Wednesday, August 8, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

At-Large Councilor Abigail Kier
At-Large Councilor Jeremy Zullo

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Mr. Koloski and seconded by Mr. Pope to accept the minutes of the July 11, 2018, City Council meeting. As amended.

Mr. Damren abstained as he was absent.

Mayor Lovett said on page 6 to add a comment that the Finance Committee reviewed the resolution and recommended the Council vote in favor of it.

Voice vote: motion carried 6-0, 1 abstain (Mr. Damren).

MAYOR'S NOTES

- Received a congratulatory note for receiving the Environmental Merit Award from the US Environmental Protection Agency Region 1 based on the work the City has done on childhood lead poisoning. She asked that instead of this being an individual award, that it

be given to the City as a whole. The ceremony is Wednesday, September 12, 11 a.m., Faneuil Hall, Boston, Massachusetts. She requested the City Manager establish a place in City Hall where the public can view the award.

- Second Annual Source to Sea Clean Up of the Connecticut River and its Tributaries will be September 28-29. The Conservation Commission is leading the effort for Claremont.
- August 9 joint meeting of the Council and School Board will be held at Sugar River Valley Regional Technical Center.
- Census Bureau is hiring field reps. Hours vary. Go to www.census.gov/fieldjobs.

CITY MANAGER'S REPORT

Mr. McNutt said there is no formal report because he was away on vacation.

- Due to being down one staff member, Central Collections hours have been reduced. They will be closed Wednesdays and will close at 4 p.m. each of the other days until further notice. Someone had asked him why they don't stay open later on one of the days. That is being reviewed. He noted that between 9 and 10 a.m. is when they get the most foot traffic. He noted that many of the services can be done online.
- Earlier this year there had been a discussion about potentially closing Half Mile Road because of dumping. Now, someone has dumped part of a house demolition on the road. This is an active investigation. Some of this mess was dumped on private property. He asked if someone in the community sees something out of sorts, to report it to the Police Department or the City Manager's office.
- We are getting quotes for the Library air conditioning. Hopefully, it will be installed by next spring
- In July, the City was in a moderate drought. The recent rains have filled the reservoirs and the water is running over the spillways. He commended Public Works on the work done on the spillways.

Mr. Pope asked what the general staffing needs would be in Central Collections in order to not close for lunch. Mr. McNutt said he can look into that.

Mr. Koloski said the Lollipop Carnival will be Friday, August 10, 5-9 p.m. in Barnes Park.

APPOINTMENT TO BOARDS AND COMMITTEES

Airport Advisory Board

A motion was made by Mr. Koloski and seconded by Mr. Damren to re-appoint Stephen Keen to seat 4 of the Airport Advisory Board.

Voice vote: motion carried 7-0.

Frances J. Tolles Home Trustees

A motion was made by Mr. Damren and seconded by Mr. Stone to re-appoint Karlaine Livingston to seat 2 of the Frances J. Tolles Home Trustees.

Voice vote: motion carried 7-0.

Claremont Energy Advisory Committee

Mayor Lovett suggested looking at Mr. Ferland, because of his engineering background, for seat 3. She suggested David Lucier for seat 2 and Mr. Carpenter for the alternate seat.

A motion was made by Mr. Koloski and seconded by Mr. O’Hearne to appoint William Carpenter to seat A1 of the Claremont Energy Advisory Committee.

Voice vote: motion carried 7-0.

A motion was made by Mr. Damren and seconded by Mr. Stone to appoint David Lucier to seat 2 of the Claremont Energy Advisory Committee.

Mr. Koloski said he will vote no because he believes Mr. Carpenter is a better fit.

Roll call vote:

Lessard - yes

O’Hearne - no

Stone - yes

Damren - yes

Koloski - no

Pope - no

Lovett – yes

Motion carried 4-3.

A motion was made by Mr. Koloski and seconded by Mr. Damren to appoint Derek Ferland to seat 3 of the Claremont Energy Advisory Committee.

Voice vote: motion carried 7-0.

CITIZEN’S FORUM

Walter Stapleton, Ward 3, said he is a candidate for the NH House of Representatives, District 5, Ward 3, and he is looking forward to serving Claremont. He talked about the train Station Host Program. They are striving to enhance ridership on Amtrak and to serve as ambassadors of Claremont.

Eric Zengota, Ward 2, said he had a great phone interview with Mr. Stapleton and will have an article in the e-Ticker News about the Station Hosts.

OLD BUSINESS

Ordinance 561 Change Speed Limit on Portion of South Street – First Reading

The purpose of this proposed change is to authorize limitation of speed limits on certain streets, as permitted by state law. Currently, the speed limits on all City streets are as set forth in RSA 265:60. However, state law, RSA 265:63, also allows the local community to vary these speed limits where appropriate and on a case-by-case basis. The proposal includes limitation of the speed limit on South Street by decreasing the speed limit on a portion of this street from 30 to 25 miles per hour.

Enactment of this Ordinance will reduce the speed limit on a portion of South Street to 25 miles per hour. The proposed ordinance is recommended by the Traffic Advisory Committee.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Ordinance 561 Change Speed Limit on Portion of South Street on first reading.

Mr. O’Hearne clarified that his previous concern about Council Rule 36 was addressed, but he said that Rules 41 Substitute Ordinances and 43 Readings were not followed.

Voice vote: motion carried 6-1 with Mr. O’Hearne voting no.

Santagate Bridge Signage Report

Keith Raymond, Ward 2 resident and Santagate Bridge Signage Committee member, said there will be a bronze plaque on a black post on both sides of bridge. The signs and their placements have been approved by the Historic District Commission (HDC), as well as the Parks & Recreation and Public Works Directors.

The signs will read:

The Santagate Bridge

This bridge is named in honor of Guy Santagate, City Manager of Claremont (2001-2016), to commemorate his achievements on behalf of the city. His capacity to connect the divergent interests, values, and goals of stakeholders within and outside of Claremont, resulted in numerous significant accomplishments. A true champion for Claremont, Mr. Santagate’s vision, commitment to good governance, and leadership abilities have earned him this recognition from a grateful community.

Mr. Raymond said the Committee would like to make the presentation of the signs at the October 6 Fall Festival/Chili Cook-off. The Committee hopes to raise enough money to be able to maintain the signs afterward.

Mike Satzow, Ward 2, said the community has been very generous and they have raised almost 2/3 what is needed. He estimated the cost to be about \$3,000. For anyone wishing to donate, make checks out to the City of Claremont, put Santagate Bridge Project on the memo line and give them to the Finance Director, Mary Walter.

Refuse Tax Deed Follow-Up

Nancy Merrill, Planning and Development Director, said for 39 Central Street, Map 119/354, the City is recommending to take the property for tax deed. Even if the building stays, the remediation work can be done. About \$60,000 is owed in back taxes. Gwen Melcher, City Clerk, said that is going back to 2005. Ms. Merrill said the owner's location is unknown. There was a fuel leak from an above ground tank due to vandalism. The City didn't own the property, so there is no insurance coverage for that.

Regarding asbestos wrapped pipes and lead paint, Ms. Merrill said many houses taken by tax deed probably had asbestos and lead paint. As long as the City is not razing the building, that shouldn't be a problem.

Ms. Melcher said if the property goes to auction, the purchaser would not be liable for the back taxes.

Ms. Merrill recommended cleaning up the property before putting it out for auction.

Mr. Stone said the HDC would like to see the structure remain. He would be in favor taking the property.

Mayor Lovett said if the City takes ownership, we could look for avenues to restore it (i.e. LCHIP grant).

Ms. Merrill said the inside of the building was cleaned when the back wooden section was taken down.

Mr. Koloski said he didn't recuse himself because the discussion was for 39 Central, but if the discussion moves to other properties such as the Topstone building, he will recuse himself. He said he has walked through the property. He would not want to take the property now. The HDC would like to walk through the property to do an assessment. He suggested having an environmental assessment done at the same time. He wants an identified action plan. He suggested this might work as an offsite property for the school.

Mr. McNutt said approximately 700 gallons of heating oil leaked into dirt. It may cost a couple grand to remove the contaminated soil. Potential ground water monitoring seems to be the hook. Staff is not concerned about taking it. We have limited staff and there are other major projects being worked on. He asked that the Council not expect an immediate turn around.

Ms. Melcher said she will come back to Council next month with about 15 properties to be tax deeded and 39 Central will be placed in that group.

Ms. Merrill said Staff recommended holding off taking action on the Winter Street, map 73-1, property for 30-60 days. The City's files show that there was a building there and that transformers were cut up there. There are concerns there may be PCBs in the soil. She has sent information to DES and they will do what they can to track down the old Human Services file.

Mayor Lovett asked for a sense of whether or not the Council would agree to taking 39 Central. All said yes except Mr. Koloski.

A motion was made by Mr. Pope and seconded by Mr. Damren that the City Council, having reviewed the list of impending tax deed parcels as presented by the City's Tax Collector, hereby notifies the Tax Collector that she shall not execute a deed of the real estate to the City for the following parcels because the Council has determined in its judgment that acceptance would subject the City to undesirable obligations or liability risks, including the potential liability as an owner of property under state and federal law, which imposes strict liability on owners for environmental impairment of the real estate involved:

73-1 Winter St**

**** Potential Hazardous Site**

The City Council further authorizes the Tax Collector or other City official to enforce all such tax liens upon the above-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.

Voice vote: motion carried 6-1 with Mr. Stone voting no.

NEW BUSINESS

Resolution 2019-6 Apply for Community Revitalization Tax Relief Program (RSA 79-E)
– Goddard Block, 54-62 Pleasant Street – Public Hearing

Proposed Resolution:

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City Council passed Resolution 2016-11 on July 22, 2015, adopting the provisions of RSA 79-E, Community Revitalization Tax Relief Incentive; and

WHEREAS on May 30, 2018, the City received an application from Goddard Block Limited Partnership, seeking property tax relief under the provisions of RSA 79-E as incentive for substantial rehabilitation for property located at 54-62 Pleasant Street (the "Property"); and

WHEREAS the Property is located within the City's 79-E Incentive District, as designated by Resolution 2016-11; and

WHEREAS Goddard Block Limited Partnership plans to invest approximately \$7,376,463.00 to substantially rehabilitate the Property into 36 apartment units and 10,000 square feet of retail space; and

WHEREAS the City Council has determined that the application has met the requirements of RSA 79-E:14 and has determined that the construction cost for the proposed apartments shall not result in the use of state or federal grants or funds that do not have to be repaid whereby such funds would total 50% or more of the project's construction cost; and

WHEREAS the City Council finds that the application satisfies all applicable provisions of RSA 79-E and is eligible pursuant to RSA 79-E:5, I for a Community Tax Relief Incentive for a period up to five (5) years, beginning with the completion of the substantial rehabilitation of the Property.

NOW THEREFORE BE IT RESOLVED that the City Council hereby determines the proposed project has a public benefit in accordance with RSA 79-E:7, I, II, II-a, III & IV; and

BE IT FURTHER RESOLVED the City Council herein approves the application for tax relief for a period of five (5) years per RSA 79-E:5, I, commencing upon the completion of the substantial rehabilitation of the Property as evidenced by the issuance of a Certificate of Occupancy; and

BE IT FURTHER RESOLVED that the granting of this Community Tax Relief Incentive is subject to the granting by Goddard Block Limited Partnership of a covenant, acceptable to legal counsel, in accordance with RSA 79-E:8, ensuring that the property shall be maintained and used in a manner that furthers the public benefits for which the tax relief was granted and such other requirements as are set forth in Resolution 2016-11; and

BE IT FURTHER RESOLVED that if the covenant is terminated for any reason, the City shall assess all current and arrears taxes to the owner as though no tax relief was granted, with interest, in accordance with RSA Chapter 75; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(Majority Vote Required)*

Ms. Merrill said the law requires that public benefit be determined.

There was a discussion about the number of years this would be for. The resolution is proposing five years.

Kevin LaCasse, Goddard Block, said he was applying for the five years, but he would accept the additional four years if the Council gave them to him.

Mayor Lovett asked about adding the additional four years at a later date. Ms. Merrill said it would have to be done before construction begins.

Ms. Merrill said when the Council adopted RSA 79E, it did not adopt the additional four years for housing; the additional four years is limited to historic structures. Mr. LaCasse said the building has been selected to be placed on the Historic Register.

Mr. Koloski said he couldn't be in support of the additional four years as the applicant did not apply for that. He is in favor of what is before the Council. Mr. Damren agreed with Mr. Koloski.

Mr. Koloski said this is in the Downtown TIFD (Tax Incremental Finance District) and we don't capture the increase for this period, which doesn't help the TIFD. Mayor Lovett said the hope is that type of investment will spur on other investment.

A motion was made by Mr. Damren and seconded by Mr. Pope to adopt Resolution 2019-6 Apply for Community Revitalization Tax Relief Program (RSA 79-E) – Goddard Block, 54-62 Pleasant Street as amended.

A motion was made by Mr. Damren and seconded by Mr. Koloski to amend the dollar amount in the fourth Whereas paragraph to \$7.5 million.

Voice vote: motion carried 7-0.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Mr. Koloski asked if this overlaps any other incentive zone. Ms. Merrill said it is an Economic Revitalization Zone.

Voice vote: motion carried 7-0.

Mayor Lovett asked Ms. Merrill to check to see if Council wants to extend, if they can. Ms. Merrill will check.

Arrowhead Presentation

Chuck Allen, Ward 3 resident and Arrowhead Recreation Club (ARC) member, said that ARC has a no-cost lease agreement with the City to operate the facility within certain guidelines. He said the value of improvements that have been done by the ARC exceeds \$250,000. They are all volunteers. They need new volunteers as a lot of the current ones are starting to age. They pay a yearly insurance premium of \$15,500 and are making groomer loan payments amounting to \$15,000 a year. They still owe \$24,000 on the groomer. Arrowhead brings in 5,000 plus paid patrons each season. Statistics for 2017/2018 season: Operational Days 30, Customer Visits 4,029, Volunteer Operational Hours 1,834.50, Volunteer Non-Operational Hours 2,044, Total Volunteer Hours 3,878.50. Next big event at Arrowhead is Reach the Peak Adventure Run on August 18th. He gave a historical background starting in 1997 when Spencer Allen started

restoration efforts. He said Arrowhead was built in 1962. Of the groups that have operated it, ARC has done it for the longest time.

Mr. Koloski said the City is the landlord and he would like to make sure that if something is needed (i.e. roof issues), that the City looks at it.

Mr. Allen said the windows are 1960s vintage and are single pane and the doors are also single pane. The heating system is getting old. Once the windows and doors are done, they can look at air conditioning.

Lot Merger – Map 120, Lot 140; and Map 120, Lot 124 (Monadnock Park)

Ms. Merrill said this is a house-cleaning item. This is 1.5 acres that sits on the northern tip of Monadnock Park. The area is used by Parks and Recreation. The City would like to merge this lot with the Park.

A motion was made by Mr. Koloski and seconded by Mr. Damren to authorize the enlargement of Monadnock Park by the incorporation into Monadnock Park of property owned by the City and identified as Tax Map 120-40, consisting of approximately 1.52 acres of vacant land, and further authorizes the City Manager or his designees to merge Tax Map 120-40 and Tax Map 120-124.

Voice vote: motion carried 7-0.

Boat Landing Discussion

Mayor Lovett said every year the City receives complaints that residents can't use the ramp at Ashley's Boat Landing. She said it is time that the Council and City Staff work with the State so that the landing is cleared and ready for use by Memorial Day weekend. She asked Councilors and Gary Dickerman, Conservation Commission Chair, for their questions.

Gary Dickerman, Ward 2 resident and Conservation Commission Chairman, said last summer the Conservation Commission contacted NH Fish & Game (F&G) and made suggestions for improvements. F&G responded they have to be aware of the terms of the grant. It is a boat launch and to go beyond that, by adding picnic tables, etc., would not be allowed. One thing he would like to see is a separate canoe and kayak launch at the end (shallow). The area would need some improvement. He would suggest the corner be widened to launch a canoe or kayak. The culvert needs work/replacement; he's not sure if it is the State's or City's responsibility. When that work is done, it would be a good time to widen the area. This area is on F&G's list for overhaul. He would like to be kept informed of future actions in this area.

Mr. McNutt said at the beginning of every season, F&G removes the silt at the ramp and they have to apply for a permit to do that. Any improvements not approved may affect that work. The concern is that they need to maintain compliance with DES (Department of Environmental Services). He will check to see who owns the property.

Mr. Koloski is concerned about trash. The area has been used for filming two pictures. Jersey barriers on the culvert replaced the fence. The area is overgrown. He said he got permission from the State to close off the area when he was working in the area, so the State may own it. He talked about the condition of the area after the dredging (i.e. huge drop off, not gradual, and muddy). A minimum of five timber posts are missing that are supposed to mark the bend. Some signs are missing. He would like it to go back to its original condition. It is currently run down and decrepit. It's no longer the beautiful asset it was. He asked if the Council would pen a letter expressing its concerns. The road, which is owned by the City, is trenched out on one side. The parking lot needs grading and fill. He would like to include the neighbors in future discussions.

After discussion it was determined Councilors would like to invite Garret Graaskamp, Public Boat Access Coordinator, to a Council meeting. Mayor Lovett asked Mr. McNutt to see who owns the area and if it is the City Council will need a copy of the MOU.

Mr. O'Hearne remembers that a lot of work was done by the Army Corps of Engineers.

City Fee Schedule – Public Hearing

Mr. Damren said that the Finance Committee has been through most of the fee schedules. The Finance Committee has some questions about the City Manager's fees and they have not begun looking at the Fire Department fees.

A motion was made by Mr. Pope and seconded by Mr. Damren to accept the Fee Schedule as presented with changes to the Health Department, Parks and Recreation Department, Planning and Development Department – Planning and Zoning, and Public Works Department. There were no changes to the City Manager's fee or the Fire Department's fees.

Voice vote: motion carried 7-0.

COMMITTEE REPORTS

Ms. Lessard is a member of the Airport Advisory Committee and she gave an overview of her first meeting. She suggested that in the future, the airport may need airport hosts similar to the Amtrak hosts. She suggested the possibility of bringing in an air show. Mayor Lovett asked Ms. Lessard if it would be helpful to the Committee to get an update on the airport responsibilities. Ms. Lessard said she will talk with the Committee.

Mayor Lovett said the Energy Advisory Committee (EAC) needs to meet soon because she received a letter from the Mayor of Franklin requesting that she sign on, with other Mayors, to override the Governor's veto of SB446 relative to net energy metering limits for customer-generators and SB365 relative to the use of renewable generation to provide fuel diversity. She would like the EAC to meet before the August 22nd Council meeting in order to get guidance regarding her signing on to override the Governor's veto. Seven of NH's mayors have signed on in support of the override. She said, according to a letter from Victor St. Pierre, Assistant Public

Works Director, that there would be an impact to Claremont regarding the wastewater treatment plant (wood ash and processing the sludge for fertilizer) if the vetoes are not overridden.

Mayor Lovett said Development of Community-Wide Energy Policy will be on the agenda for the August 9th joint meeting of the Council and School Board. She would like to know on August 22 if the Council is in favor of her signing this letter.

Mayor Lovett will send a copy of the mayoral letter and Mr. St. Pierre's letter for distribution to the Council and Energy Committee.

Mr. Pope asked Mr. McNutt if he can speak to local businesses to see how this will affect them.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope asked for an update on the old Pleasant Restaurant building. Mr. McNutt said currently environmental remediation is being done.

Mr. Damren asked which streets will be included in the paving bid that had just been received. Mr. McNutt said Centennial and Chellis Streets.

Mr. O'Hearne asked why East Street was closed. Mr. McNutt said work is being done on the culvert.

Mr. Koloski said he has received two pothole complaints. One is by Coldwell Banker on Washington Street, just before the traffic signal. The other is at the intersection of Paddy Hollow Road and Clay Hill. Both are about the size of a tire.

Mr. Koloski pointed out that an outlet in the City Hall hallway needs a cover.

Mr. Koloski asked about Airport fees (i.e. hangar rates) and who sets the rates. Mr. McNutt said he can check.

Mr. O'Hearne said in the near future Council needs to discuss the procedures for how Councilors are appointed to committees.

Mayor Lovett said a follow-up needs to be scheduled regarding an action plan for Arrowhead. She asked that questions or concerns be sent to the City Manager. She said she will email Mr. Allen asking for his concerns.

Mr. Koloski talked about possible funding for Arrowhead through USDA Rural Development. Mayor Lovett said she asked about it and will forward that information to the Council.

Mr. Koloski asked about work being done at the old gas plant (urban Stonehenge). Mr. Pope said it is being looked at for more repair. Signs have been placed showing the history of the gas plant. Work has been done over two or three years. He encouraged people to take a look at it. Mr. McNutt said the work has been done by Public Works, Planning and Development and the

EPA. It has been an EPA project to clean up the area. Mayor Lovett said this underscores the need for communication between the Council and these entities.

Mayor Lovett said if anyone is interested in attending the September 12 award ceremony to let her know.

Mr. O'Hearne said a month or two ago, he requested a letter for the Public Works Department. Mayor Lovett said she will get it done.

There was a discussion of Mr. Koloski's previous request to send welcome letters to newly opened or expanded businesses. Mr. Koloski suggested when a certificate of occupancy is granted, a form letter could be generated which would be signed at the following Council meeting. Mayor Lovett said that idea can be investigated, but the question is who, on the City side, would do that. Mr. McNutt said he and Ms. Merrill approach new businesses for ribbon cuttings. Harbor Freight has been contacted, but their response is that they are very busy right now. Mr. Koloski would just like to send a thank you to the businesses. Mayor Lovett said she can generate some options.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:37 p.m., a motion was made by Mr. Damren and seconded by Mr. O'Hearne to adjourn.

Voice vote: motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council